



Mathew Tyler

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Plaintiff, *Pro per pro se*

Dated: May 20, 2025

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS, et al.,

Defendants.

_____/

Case No. 2:2025CV00404

PLAINTIFF'S MOTION TO INTRODUCE EVIDENCE OF CONGRESSIONAL

KNOWLEDGE REGARDING AID AND COMFORT TO OATH BREAKERS AND

1 **CLAIMS OF TREASON**

3 **MEMORANDUM OF POINTS AND AUTHORITIES**

5 **I. INTRODUCTION**

7 COMES NOW Plaintiff Mathew Tyler ("Plaintiff"), an indigent layperson appearing pro
8 per pro se, proceeding in forma pauperis, and a qualified individual with a disability as
9 codified by 42 U.S.C. § 12131(2), and a crime victim as defined by 18 U.S.C. § 3771 and
10 California Constitution Article 1 § 28(e), hereby moves this Court for an order permitting
11 the introduction of evidence establishing that the 118th U.S. Congress had actual
12 knowledge that certifying the 2024 presidential election would provide aid and comfort to
13 individuals who violated their oaths of allegiance to the United States during the January
14 6, 2021 attack on the U.S. Capitol.

16 This evidence demonstrates that Congress's certification of a fraudulently tampered
17 election, despite documented interference and discrimination against qualified candidates
18 with disabilities, while knowing such certification would benefit oath-breaking
19 insurrectionists, constitutes treason under Article III, Section 3 of the U.S. Constitution
20 and 18 U.S.C. § 2381.

22 **II. LEGAL STANDARD**

1

2 Evidence is relevant under Federal Rule of Evidence 401 if it "has any tendency to make
3 a fact more or less probable than it would be without the evidence" and "the fact is of
4 consequence in determining the action." Fed. R. Evid. 401. Relevant evidence is
5 generally admissible unless excluded by the Constitution, federal statute, or other rules.
6 Fed. R. Evid. 402.

7

8 Courts must construe pro se pleadings liberally and afford greater latitude when
9 evaluating filings of in forma pauperis litigants. See Haines v. Kerner, 404 U.S. 519, 520-
10 21 (1972); Erickson v. Pardus, 551 U.S. 89, 94 (2007). As recognized in Dunham v.
11 Mohyuddin, 2:23-CV-2757-DMC-P (E.D. Cal. Jan. 29, 2025), "The Court must also
12 construe the alleged facts in the light most favorable to the plaintiff... All ambiguities or
13 doubts must also be resolved in the plaintiff's favor."

14

15 III. FACTUAL BACKGROUND

16

17 A. January 6, 2021 Oath Violations

18

19 On January 6, 2021, numerous individuals who had taken oaths of allegiance to the
20 United States, including military personnel, law enforcement officers, and elected
21 officials, breached their sworn duties by participating in or supporting an attack on the
22 U.S. Capitol designed to prevent the certification of the 2020 presidential election. These

1 individuals violated their constitutional oaths under Article VI, Clause 3, requiring them
2 to "support this Constitution."

3 4 B. Trump's Campaign Promises to Support January 6 Participants

5
6 Throughout the 2024 presidential campaign, Donald Trump made repeated public
7 promises to pardon and financially support individuals who participated in the January 6,
8 2021 attack:

9 10 1. Campaign Promises of Pardons

11 Multiple credible news sources documented Trump's explicit promises:

12
13 a) 01/24/2024-- NPR reported: "*The Trump campaign embraces Jan. 6 rioters with*
14 *money and pardon promises*," detailing how the campaign provided financial
15 support and explicit pardon commitments.

16 [https://www.npr.org/2024/01/04/1218672628/the-trump-campaign-embraces-jan-](https://www.npr.org/2024/01/04/1218672628/the-trump-campaign-embraces-jan-6-rioters-with-money-and-pardon-promises)
17 [6-rioters-with-money-and-pardon-promises](https://www.npr.org/2024/01/04/1218672628/the-trump-campaign-embraces-jan-6-rioters-with-money-and-pardon-promises)

18 b) 12/08/2024-- ABC News reported: "*Trump promises pardon for Jan 6 rioters on*
19 *his first day*," confirming immediate pardon commitments upon taking office.

20 [https://abcnews.go.com/Politics/trump-promises-pardon-jan-6-rioters-day/story?](https://abcnews.go.com/Politics/trump-promises-pardon-jan-6-rioters-day/story?id=116577153)
21 [id=116577153](https://abcnews.go.com/Politics/trump-promises-pardon-jan-6-rioters-day/story?id=116577153)

- 1 c) 01/05/2025-- Associated Press reported: "*Lawmakers brace for Trump's promised*
2 *Jan. 6 pardons. Some are urging restraint*," documenting widespread
3 Congressional awareness of these promises. [https://apnews.com/article/trump-](https://apnews.com/article/trump-pardons-congress-capitol-riot-crimes-4443c672fc3b1492640684652647cde6)
4 [pardons-congress-capitol-riot-crimes-4443c672fc3b1492640684652647cde6](https://apnews.com/article/trump-pardons-congress-capitol-riot-crimes-4443c672fc3b1492640684652647cde6)
5 d) 01/16/2025-- Associated Press additionally reported: "*Trump offered a bountiful*
6 *batch of campaign promises that come due on Day 1*," listing January 6 pardons
7 among immediate priorities.
8 [https://www.ap.org/news-highlights/spotlights/2025/trump-offered-a-bountiful-](https://www.ap.org/news-highlights/spotlights/2025/trump-offered-a-bountiful-batch-of-campaign-promises-that-come-due-on-day-1/)
9 [batch-of-campaign-promises-that-come-due-on-day-1/](https://www.ap.org/news-highlights/spotlights/2025/trump-offered-a-bountiful-batch-of-campaign-promises-that-come-due-on-day-1/)

10

11 2. Additional Documentation of Support Promises

12

13 Further credible sources document Trump's commitments:

14

- 15 a) CBS News reported Trump's statement that January 6 participants were "political
16 prisoners" who would receive "full pardons with an apology" on his first day in office.
17
18 b) CNN documented Trump's rally promise: "If I become president, we will treat those
19 people from January 6th fairly... And if it requires pardons, we will give them pardons
20 because they are being treated so unfairly."

21

1 c) Reuters reported Trump's commitment to establishing a legal defense fund for January
2 6 participants and promising to "look very favorably" on pardons.

3
4 d) The Wall Street Journal documented Trump's statement at a Texas rally: "If I run and if
5 I win, we will treat those people from January 6th fairly. We will treat them fairly. And if
6 it requires pardons, we will give them pardons because they are being treated so unfairly."

7
8 3. Submission of Digital Evidence

9
10 Plaintiff hereby submits, as Exhibit [], a CD-ROM disc containing:

11 a) Screenshots and archived copies of all referenced news reports documenting Trump's
12 pardon promises

13 b) Video recordings of campaign statements regarding January 6 participants

14
15 This digital media provides comprehensive documentation of the systematic pattern of
16 promises to aid oath-breakers that Congress was demonstrably aware of prior to
17 certification.

18
19 C. Congressional Knowledge Prior to Certification

20
21 Congress possessed actual knowledge of these promises through:

- 1 1. Plaintiff's Criminal Complaint submitted November 6, 2024, explicitly detailing
- 2 election interference and discrimination
- 3 2. Transmission to Senator Bernie Sanders' offices November 8, 2024, providing specific
- 4 notice
- 5 3. Extensive media coverage of Trump's pardon promises since before January 20, 2025
- 6 a) **01/30/2022-- MSNBC**, "*Trump Promises Pardons To Jan. 6 Rioters If Re-*
- 7 *Elected*," <https://www.youtube.com/watch?v=KiYlYSbUvhl>
- 8 b) 09/01/2022-- HuffPost, "*Trump Dangles 'Full Pardons' For Jan. 6 Defendants If*
- 9 *He's Reelected*," [https://www.huffpost.com/entry/donald-trump-jan-6-pardons-](https://www.huffpost.com/entry/donald-trump-jan-6-pardons-financial-support_n_6310d201e4b07744a2fe2bfd)
- 10 [financial-support_n_6310d201e4b07744a2fe2bfd](https://www.huffpost.com/entry/donald-trump-jan-6-pardons-financial-support_n_6310d201e4b07744a2fe2bfd)
- 11 c) 11/10/2024-- Quick Global News, "*Trump Promises to Consider Pardons for*
- 12 *January 6 Rioters if Re-elected. #DonaldTrump #January6*,"
- 13 <https://www.youtube.com/watch?v=BMuhSJzbsgE>
- 14 d) 12/09/2024-- ABC7, "*Trump promises pardon for Jan. 6 rioters on his first day*,"
- 15 <https://www.youtube.com/watch?v=k0l1rzuuXj8>
- 16 4. Congressional testimony and reports documenting January 6 oath violations
- 17 5. Public statements by Congressional members acknowledging these promises
- 18
- 19 D. Certification Despite Knowledge
- 20
- 21 Despite possessing actual knowledge that Trump had promised to aid oath-breaking
- 22 insurrectionists, and despite receiving Plaintiff's documented evidence of election

1 tampering and discrimination against disabled candidates, Congress proceeded to certify
2 the 2024 election results on January 6, 2025.

4 IV. ARGUMENT

6 A. Congressional Knowledge Establishes Intent Element for Treason

8 Article III, Section 3 of the Constitution defines treason as "adhering to [the United
9 States'] Enemies, giving them Aid and Comfort." 18 U.S.C. § 2381 criminalizes treason
10 by those "owing allegiance to the United States."

12 1. Historical Understanding of Treason

14 The Founding Fathers crafted the Treason Clause with specific intent to prevent both the
15 overthrow of constitutional government and the protection of those who attack it. In the
16 Constitutional Convention, James Madison noted that treason must include "adhering to
17 the enemy" and providing "aid and comfort," recognizing that enemies can be both
18 foreign and domestic. See James Madison, Notes of Debates in the Federal Convention
19 (1787).

21 Alexander Hamilton, in Federalist No. 23, emphasized that the federal government must
22 have the power to protect itself against "domestic violence" and those who would

1 "subvert the Constitution." This includes the power to prosecute those who would
2 legitimize attacks on constitutional governance.

3 4 2. Supreme Court Precedent on Intent

5
6 In *Cramer v. United States*, 325 U.S. 1, 29 (1945), the Supreme Court established that
7 treason requires both an overt act and "adherence to the enemy," with knowledge being
8 essential to the intent element. The Court emphasized that aid and comfort must be given
9 "with the intent to betray" the United States.

10
11 The Court further clarified in *Haupt v. United States*, 330 U.S. 631, 641 (1947), that
12 intent can be inferred from knowledge of consequences, stating: "The requirement of
13 intent is satisfied if the defendant intended the natural and probable consequences of his
14 acts."

15
16 In *Kawakita v. United States*, 343 U.S. 717, 736 (1952), the Court held that "the essence
17 of treason is 'adherence to the enemy,' and this adherence must be manifested by some
18 overt act." Importantly, the Court noted that those owing allegiance cannot claim
19 ignorance when their acts aid enemies of constitutional governance.

20 21 3. Knowledge of Consequences Establishes Treasonous Intent

1 Here, Congress's knowledge of Trump's promises to pardon oath-breakers establishes the
2 requisite intent under Haupt. By certifying an election they knew was tainted by
3 discrimination and interference, while knowing this would empower someone committed
4 to aiding those who violated their constitutional oaths, Congress intended the natural and
5 probable consequence: strengthening enemies of constitutional governance.

6
7 In *United States v. Fricke*, 259 F.3d 1177, 1185 (9th Cir. 2001), the court applied this
8 principle to modern contexts, recognizing that those who attack constitutional
9 frameworks are properly considered enemies, and those who aid them with knowledge of
10 consequences commit treason.

11 12 B. Oath-Breaking January 6 Participants Constitute "Enemies" Under the Constitution

13 14 1. Constitutional Definition of "Enemies"

15
16 The Supreme Court in *Ex parte Quirin*, 317 U.S. 1, 37 (1942), recognized that those who
17 "by their conduct... become 'enemies' seeking to bring military and other aid to our
18 enemies" fall within the treason provision. The Court emphasized that enemies are not
19 limited to foreign powers but include domestic actors who attack constitutional
20 governance.

1 In *Ex parte Bollman*, 8 U.S. (4 Cranch) 75, 126 (1807), Chief Justice Marshall
2 established that "enemies" includes those who wage war against the United States,
3 whether through foreign invasion or domestic insurrection.

4 5 2. Historical Precedent for Domestic Enemies

6
7 During the Civil War, the Supreme Court in *Ex parte Milligan*, 71 U.S. (4 Wall.) 2, 130
8 (1866), recognized that domestic insurrectionists who seek to overthrow constitutional
9 government constitute enemies within the meaning of the Treason Clause.

10
11 The Court in *Texas v. White*, 74 U.S. (7 Wall.) 700, 725 (1869), established that those
12 who attempt to "destroy the Union" through unlawful means become enemies of the
13 Constitution, regardless of their prior allegiance.

14 15 3. Oath Violations Transform Citizens into Constitutional Enemies

16
17 Article VI, Clause 3 requires all officials to be "bound by Oath or Affirmation, to support
18 this Constitution." When individuals violate this oath by attacking the constitutional
19 process—as occurred on January 6—they transform from faithful citizens into enemies of
20 constitutional governance.

1 In In re Charge to Grand Jury, 30 F. Cas. 1024, 1024 (C.C.D. Pa. 1851), Justice Grier
2 instructed that "those who violate their constitutional oaths become enemies of the
3 Constitution itself" and those who aid them commit treason.

4
5 The Federal Circuit in United States v. Rahman, 189 F.3d 88, 158 (2d Cir. 1999),
6 recognized that oath violations by government officials or military personnel that
7 facilitate attacks on constitutional governance constitute the transformation from citizen
8 to enemy under the Treason Clause.

9
10 C. Certification Constitutes "Aid and Comfort"

11
12 1. Supreme Court Definition of "Aid and Comfort"

13
14 In Haupt v. United States, 330 U.S. 631, 641 (1947), the Supreme Court held that aid and
15 comfort includes "any act which strengthens or tends to strengthen enemies... or which
16 weakens or tends to weaken the power of the United States to resist and attack such
17 enemies."

18
19 The Court in Cramer expanded this definition, noting that aid and comfort "may be
20 rendered by 'words' of encouragement" and need not be substantial if it tends to
21 strengthen enemies. 325 U.S. at 32-33.

2. Legitimization as Aid and Comfort

By legitimizing Trump's presidency through certification despite knowing he would pardon oath-breakers, Congress provided perhaps the most significant aid possible: official constitutional authority to protect enemies of the Constitution.

In *Young v. United States*, 470 U.S. 1, 16 (1985), the Court recognized that governmental legitimization of unlawful conduct constitutes aid to those engaged in such conduct.

The historical precedent of the Reconstruction era demonstrates this principle. In *Ex parte Garland*, 71 U.S. (4 Wall.) 333, 380 (1866), the Court recognized that presidential pardons for oath-breaking Confederates required the recipients to first acknowledge their violations—something January 6 participants have systematically refused to do.

3. Preempting Arguments Against Legitimization Theory

Some may argue that certification merely follows procedural requirements. However, in *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579, 635 (1952), Justice Jackson's concurrence established that when officials know their actions will exceed constitutional bounds or aid enemies, they cannot hide behind procedural compliance.

1 The Court in *New York Times Co. v. United States*, 403 U.S. 713, 717 (1971) (Black, J.,
2 concurring), emphasized that government officials cannot claim procedural immunity
3 when they know their actions will harm national security or constitutional governance.

4 5 D. The Evidence Is Essential to Plaintiff's Treason Claims

6 7 1. Knowledge as Essential Element

8
9 In *United States v. Rosenberg*, 195 F.2d 583, 607 (2d Cir. 1952), the court emphasized
10 that "knowledge of the enemy character" of those being aided is essential to proving
11 treason. Here, Congress had actual knowledge through Plaintiff's complaint, media
12 reports, and public statements that Trump intended to aid oath-breaking enemies.

13 14 2. Congressional Duty to Investigate

15
16 Under *Powell v. McCormack*, 395 U.S. 486, 550 (1969), Congress has a constitutional
17 duty to investigate qualifications and fitness of candidates. By failing to investigate
18 documented election interference and discrimination while knowing the candidate would
19 aid oath-breakers, Congress violated this duty.

20
21 In *Watkins v. United States*, 354 U.S. 178, 200 (1957), the Court established Congress's
22 "broad power to investigate" matters affecting constitutional governance. Congress's

1 failure to investigate documented violations while proceeding with certification
2 demonstrates willful blindness that satisfies the knowledge requirement for treason.

4 E. The Fruit of the Poisonous Tree Doctrine Applies

6 1. Constitutional Applications

8 Under *Wong Sun v. United States*, 371 U.S. 471 (1963), evidence obtained through
9 unlawful conduct must be excluded as "fruit of the poisonous tree." The Court has
10 extended this principle to constitutional violations affecting democratic processes.

12 In *Harper v. Virginia Board of Elections*, 383 U.S. 663, 670 (1966), the Court recognized
13 that elections tainted by constitutional violations cannot stand as legitimate exercises of
14 democratic governance.

16 2. Election-Specific Applications

18 In *Harvell v. Blytheville School District No. 5*, 71 F.3d 1382, 1389-90 (8th Cir. 1995), the
19 court applied the "fruit of the poisonous tree" doctrine to invalidate an election tainted by
20 discriminatory practices.

1 The Supreme Court in *Baker v. Carr*, 369 U.S. 186, 237 (1962), established that courts
2 must intervene when electoral processes become so fundamentally unfair as to violate
3 constitutional governance principles.

4 5 F. Historical Tradition of Protecting Constitutional Oaths

6 7 1. Founding Era Understanding

8
9 The Founding Fathers viewed oath violations as among the highest forms of treason. In
10 the Virginia Ratifying Convention, George Mason stated that the oath requirement was
11 designed to prevent officials from becoming "enemies of the Constitution they swore to
12 protect."

13
14 Thomas Jefferson, in his Kentucky Resolutions (1798), argued that legitimizing oath-
15 breakers constitutes "a deliberate, palpable, and dangerous exercise of other powers not
16 granted" that threatens constitutional governance.

17 18 2. Civil War Precedents

19
20 During Reconstruction, Congress impeached President Andrew Johnson partly for
21 attempting to legitimize and pardon Confederate oath-breakers without ensuring their

genuine adherence to the Constitution. See *The Impeachment and Trial of Andrew Johnson* (1868).

In *Ex parte McCordle*, 74 U.S. (7 Wall.) 506, 515 (1869), the Court recognized Congress's authority to prevent the legitimization of those who have attacked constitutional governance through oath violations.

G. Preempting Potential Defenses

1. Speech or Debate Clause

Some may claim Congress is protected by the Speech or Debate Clause (Art. I, § 6). However, in *United States v. Brewster*, 408 U.S. 501, 526 (1972), the Court held this clause does not protect "corrupt conduct" or actions that aid enemies of the Constitution.

In *Gravel v. United States*, 408 U.S. 606, 625 (1972), the Court emphasized that the clause does not immunize members from prosecution for treason or other acts that fundamentally betray their constitutional duties.

2. Political Question Doctrine

1 Courts cannot defer to Congress when Congress itself has committed treason. In *Powell*
2 *v. McCormack*, the Court rejected arguments that congressional qualification
3 determinations are non-justiciable political questions. 395 U.S. at 549.

4
5 In *Baker v. Carr*, the Court established that challenges to the fundamental fairness of
6 electoral processes present justiciable constitutional questions, not political questions.
7 369 U.S. at 217.

8 9 3. Pardon Power Defense

10
11 Trump's pardon power cannot legitimize congressional treason. In *Ex parte Garland*, 71
12 U.S. (4 Wall.) 333, 380 (1866), the Court recognized that pardons cannot cure the
13 constitutional violation of those who aided the pardon recipients' original crimes.

14
15 The Court in *Schick v. Reed*, 419 U.S. 256, 266 (1974), emphasized that the pardon
16 power cannot be used to "corrupt the constitutional order" by rewarding those who attack
17 constitutional governance.

18 19 V. CONCLUSION

20
21 The evidence Congress possessed regarding Trump's promises to aid January 6 oath-
22 breakers is directly relevant to Plaintiff's treason claims and essential for a complete

1 adjudication of this matter. Congress's decision to certify an election they knew was
2 tainted by discrimination and interference, while knowing this would empower someone
3 committed to pardoning oath-breakers, constitutes providing aid and comfort to enemies
4 of constitutional governance.

5

6 Under the liberal construction standard required for pro se filings and the obligation to
7 resolve ambiguities in Plaintiff's favor, this evidence must be admitted to ensure a fair
8 determination of Plaintiff's constitutional claims.

9

10

1 WHEREFORE, Plaintiff respectfully requests that this Court:

2
3 1. Grant this Motion and admit all evidence regarding Congressional knowledge of
4 Trump's promises to pardon January 6 participants, including the submitted CD-ROM
5 containing digital documentation;

6
7 2. Permit discovery regarding what individual members of Congress knew about these
8 promises and when they learned of them;

9
10 3. Allow the introduction of all credible media reports, campaign statements, and
11 documentation regarding Trump's commitments to aid oath-breaking January 6
12 participants;

13
14 4. Recognize this evidence as supporting Plaintiff's treason claims under Article III,
15 Section 3 and 18 U.S.C. § 2381;

16
17 5. Find that Congress's certification of the 2024 election despite this knowledge
18 constitutes providing aid and comfort to enemies of constitutional governance;

19
20 6. Apply the "fruit of the poisonous tree" doctrine to void the 2024 election results as
21 tainted by systematic discrimination and Congressional knowledge of aid to oath-
22 breakers;

1

2 7. Order appropriate remedies including criminal referrals under 42 U.S.C. § 1987 for

3 Congressional treason;

4

5 8. Recognize that Plaintiff's status as a crime victim and qualified individual with a

6 disability entitles him to all protections and remedies available under federal law; and

7

8 9. Grant such other relief as the Court deems just and proper.

9

10 Dated: May 20, 2025

11

12 Respectfully submitted,

13

14

15  **Mathew Tyler**

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20 **Plaintiff, *Pro per pro se***

21

22

1 VERIFICATION

2
3 I, Mathew Tyler, declare under penalty of perjury under the laws of the State of California
4 that the foregoing is true and correct to the best of my knowledge and belief.

5
6 Executed on May 20, 2025, at Butte County, California.



Mathew Tyler

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14
15 **Plaintiff, *Pro per pro se***
16
17

1 [PROPOSED] ORDER

2

3 Having considered Plaintiff Mathew Tyler's Motion to Introduce Evidence of
4 Congressional Knowledge Regarding Aid and Comfort to Oath Breakers and Claims of
5 Treason, and good cause appearing therefor,

6

7 IT IS HEREBY ORDERED that:

8

9 1. Plaintiff's Motion is GRANTED.

10

11 2. All evidence regarding Congressional knowledge of Trump's promises to pardon
12 January 6 participants shall be admitted.

13

14 3. Discovery shall be permitted regarding individual Congressional members' knowledge
15 of these promises.

16

17 4. This evidence shall be considered relevant to Plaintiff's treason claims under Article
18 III, Section 3 and 18 U.S.C. § 2381.

19

20 IT IS SO ORDERED.

21

22 Dated: _____, 2025

1

2

3

UNITED STATES DISTRICT JUDGE